

Policy Title: Affordable Housing 90-Day Fast Track Review Process

Policy Number: Part 7, Planning and Land Use; Chapter 3, Permits; Section 5

Type of Policy: Regulatory

Adopting Resolution: CC26-175

References: Jefferson County Zoning Resolution; Jefferson County Land Development Regulation; the current Jefferson County Building Codes and Supplements; Colorado Revised Statutes § 29-32-101 and § 29-32-105,

Effective Date: July 1, 2026

Adoption Date: July 1, 2026

Administrative Revision Date: N/A

Policy Custodian: Planning and Zoning Division

Purpose:

To establish Jefferson County's expedited development review process for qualifying affordable housing projects in compliance with Colorado Revised Statutes § 29-32-101 and § 29-32-105 (the Fast Track Review Process). All references herein to the Colorado Revised Statutes, the Jefferson County Zoning Resolution (Zoning Resolution), the Jefferson County Land Development Regulation (Land Development Regulation), the Jefferson County Transportation Design and Construction Manual (TDCM), and the Jefferson County Storm Drainage Design and Technical Criteria (SDDTC) are as those documents may be amended or superseded.

A. Definitions - In the event state statutes governing affordable housing definitions are amended, this policy shall be interpreted consistent with the most current version of § 29-32-101, C.R.S., as amended.

1. "Area Median Income" (AMI) means Area Median Income as defined in § 29-32-101(3), C.R.S.
2. Affordable Housing Development means a project in which at least fifty percent (50%) of the residential units are Affordable Rental Housing Units or Affordable For-Sale Housing Units.
3. Affordable Rental Housing Units means rental housing for which monthly rent does not exceed the thresholds established for rental housing in § 29-32-101(2), C.R.S., which current thresholds are thirty percent (30%) of the monthly income of a household earning at or below sixty percent (60%) of AMI.

4. Affordable For-Sale Housing Units” means for sale housing for which monthly housing payments do not exceed the greater of: 1) thresholds established for for-sale housing in § 29-32-101(2), C.R.S., which current thresholds are thirty percent (30%) of the monthly income of a household earning at or below one hundred percent (100%) of AMI; or 2) thirty percent (30%) of the monthly income of a household earning at or below one hundred twenty percent (120%) of AMI.

B. Applicability

1. This policy applies to development applications for Affordable Housing Developments.
2. Participation in the Fast Track Review Process is optional. An applicant may elect to opt out of the expedited review process at any time by providing written notice to Jefferson County application review staff by submitting an email to pzweb@jeffco.us or submitting an email to the case manager.
3. Eligible Application Types – pursuant to the processes stated in C.R.S. § 29-32-105(2)(a), only the following application types can utilize the Fast Track Review Process.
 - a. Site Development Plans including modifications to previously approved Site Development Plans pursuant to Zoning Resolution Section 7, but not including Site Adjustment Dedication Plats;
 - b. Minor Variations pursuant to Zoning Resolution Section 1.I.;
 - c. Alternative Standards pursuant to Land Development Regulation Section 2;
 - d. Administrative Exceptions pursuant to Zoning Resolution Section 10.C.;
 - e. Building permits associated with Affordable Housing Developments. Building permit fast-track review shall apply only after all required discretionary land use approvals associated with the project have been completed.

C. Fast Track Review Process

1. The County shall make, for a permit described in the Eligible Application Types section above, a final decision for an Affordable Housing Development within ninety (90) calendar days, unless an extension is granted to exceed the ninety (90) calendar days as stated below.
 - a. For Site Development Plans, Minor Variations, Alternative Standards and Administrative Exceptions, a final decision means approval, approval with conditions, or denial issued by the Director of Planning and Zoning.

- b. For Building Permit applications, a final decision includes approval, approval with conditions, or denial issued through the Building Safety review process following review by the assigned Plans Examiner.
- 2. Complete Application: Criteria to determine an application's completeness (Complete Application) include all materials, studies, and documentation required by County regulations and application submittal requirements.
 - a. Site Development Plans: A Complete Application for a Site Development Plan must include the following and compliance is as determined by Planning and Zoning Division:
 - 1) Completed Pre-Application Review process with Planning and Zoning;
 - 2) Completed Pre-Submittal meeting with Planning and Zoning, which will provide an applicant with an in-depth review of the development proposal prior to the submittal of an application to provide feedback to the applicant and identify any relief requests that may be needed.
 - 3) Documents required for a Pre-Submittal are as outlined below or as determined by Planning and Zoning:
 - a) Cover Letter;
 - b) Site Plan – In accordance with the Zoning Resolution Section 7. Must include access locations, building location, setbacks, intersection spacing, proposed easement locations and right of way dedication/vacation (as required);
 - c) Civil Construction Plans – 80% plan in accordance with the TDCM and the SDDTC showing access locations, vision clearance triangle and sight distance, location of building, setbacks, proposed grading, storm sewer, retaining walls, adjoining street improvements.;
 - d) Landscape Plan – 80% Plan in accordance with the Zoning Resolution Section 15 and the Land Development Regulation Section 32. Plans must show that communal amenity and common usable area requirements are met. Identifies if landscaping requirements are met. Include vision clearance and sight distance information;
 - e) Parking Plan - 80% Plan in accordance with the Zoning Resolution Section 14 showing how minimum parking requirements can be met;
 - f) Drainage Report/Plan – 80% Phase III Drainage Report in accordance with the SDDTC.
 - g) Lighting Plan in accordance with the Zoning Resolution Section 12;

- h) Transportation Study/Analysis required by TDCM
 - i) Architectural Plans and Elevations – 80% Plan in accordance with the Zoning Resolution Section 13;
 - j) Water Supply Information to include 80% Water Construction Plans if extension of the main line is required;
 - k) Wastewater Collection Information to include 80% Wastewater Construction Plans if extension of the main line is required;
 - l) Proof of Fire Protection (letter should include any specific requirements of the Fire Protection District that exceed County requirements);
 - m) Public Improvements and Landscaping Exhibit A for an improvements agreement;
 - n) Environmental Questionnaire; and
 - o) Geologic and Geotechnical Report in accordance with the Land Development Regulation Section 25.
 - p) Submittal of all Submittal Requirements for Site Development Plans that are listed as “R” and “A” in Zoning Resolution Section 9;
 - q) Completed Sufficiency Review process with Planning and Zoning, including any Resubmittal Sufficiency Review, and received Planning and Zoning clearance to move the application to the Referral process;
 - r) If applicable, completed waiver process regarding parts of Site Development Plan process, pursuant to Zoning Resolution Section 7.B.1.i.; and
 - s) If applicable, completed process for relief from standards in the Zoning Resolution and/or Land Development Regulation, pursuant to Zoning Resolution Section 7.C.
- b. Minor Variations: A Complete Application for a Minor Variation request must include the following and compliance is as determined by Planning and Zoning Division:
 - 1) Documents required for a Minor Variation are:
 - a) Cover letter and narrative identifying the specific regulation that is proposed to not be met with a justification for the requested relief; and

- b) The associated plan(s) identifying the areas of nonconformance/relief request(s)..
 - c. Alternative Standards: A Complete Application for an Alternative Standards request must include the following and compliance is as determined by Planning and Zoning Division:
 - 1) Documents required for an Alternative Standard are:
 - a) Cover letter and narrative identifying the specific regulation that is proposed to not be met with a justification for the requested relief in accordance with the Land Development Regulation Section 2 Alternative Standards/Requirements; and
 - b) The associated plan(s) identifying the areas of nonconformance/relief request(s).
 - d. Administrative Exceptions: A Complete Application for an Administrative Exceptions request must include the following and compliance is as determined by Planning and Zoning Division:
 - a) Documents required for an Administrative Exception are those documents as required in Zoning Resolution Section 10 – Enforcement and Administrative Exception .
 - e. Building Permit Application: A Complete Application for a Building Permit must include all documents required by the applicable Building Permit Checklist maintained by the County's Planning and Zoning Division and Building Safety Division and compliance with such checklist as determined and confirmed by Building Safety Division.
- 3. The ninety (90) calendar day period shall run continuously from the date the County determines the applicant submitted a Complete Application pursuant to Section C.2, above, through the date of final decision unless an allowable extension is granted pursuant to [C.R.S. § 29-32-105\(2\)\(b\) and \(c\)](#), for the following:
 - a. A one-time extension of up to ninety (90) calendar days at the request of the applicant, or for compliance with state law, court order, or a review period required by another local government, tribal government, or agency with approval authority over a component of the application for any component of the application requiring that government's or agency's approval; or
 - b. Extensions to allow for the submission of additional information or revisions to an application in response to requests from the County during the development review process.

- 1) The County shall provide written notice to the applicant describing the requested additional information and describing the revisions, comments, or concerns requiring further review.
 - 2) An applicant shall provide requested information or responses promptly and, whenever practicable, within five (5) business days.
 - 3) Any extension under subsection C.3.b shall not exceed the amount of time between the County's request and the applicant's submission of responsive materials, plus thirty (30) calendar days, consistent with section 29-32-105(2)(c), C.R.S.
4. Each Eligible Application Type, stated in Section B.3, above, shall have its own 90-day review period, plus any extensions. Jefferson County will prioritize concurrent review to the extent feasible to avoid cumulative review timelines.